EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FOURTH SECTION

DECISION

Application no. 26768/21
Ion PĂCALĂ
against Romania

The European Court of Human Rights (Fourth Section), sitting on 6 April 2023 as a Committee composed of:

Tim Eicke*, President*,
Branko Lubarda,
Ana Maria Guerra Martins*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having regard to the above application lodged on 13 May 2021,

Having deliberated, decides as follows:

FACTS AND PROCEDURE

The applicant, Mr Ion Păcală, was born in 1973. He was represented by Mr I.R. Gheorghe, a lawyer practising in Buzău.

The applicant's complaints under Articles 10 and 11 of the Convention concerning the alleged breach of his rights to freedom of expression and peaceful assembly following a fine imposed on him for a peaceful protest were communicated to the Romanian Government ("the Government"), who submitted observations on the admissibility and merits. The observations were forwarded to the applicant's representative, who was invited to submit observations on behalf of the applicant. No reply was received to the Registry's letter.

By letter dated 20 January 2023, sent by registered post, both the applicant and his representative were notified that the period allowed for submission of the applicant's observations had expired on 10 January 2023 and that no extension of time had been requested. The applicant's and his representative's attention were drawn to Article 37 § 1 (a) of the Convention, which provides that the Court may strike an application out of its list of cases where the circumstances lead to the conclusion that the applicant does not intend to

pursue the application. The applicant and his representative received the letter on 31 January 2023. However, no response has followed.

THE LAW

In the light of the foregoing, and in the absence of any special circumstances regarding respect for the rights guaranteed by the Convention and the Protocols thereto, the Court, in accordance with Article 37 § 1 (a) of the Convention, considers that it is no longer justified to continue the examination of the application.

Accordingly, the case should be struck out of the list.

For these reasons, the Court, unanimously,

Decides to strike the application out of its list of cases.

Done in English and notified in writing on 11 May 2023.

Viktoriya Maradudina	Tim Eicke
Acting Deputy Registrar	President